

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	
				13b. RATING 14. METHOD OF SOLICITATION REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP) ☐	
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED . . . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

42a. RECEIVED BY *(Print)*

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT *(Location)*

42c. DATE RECEIVED *(MM/DD/YYYY)*

42d. TOTAL CONTAINERS

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Section II: Continuation of SF1449

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
0001		Weekly Inspection, Testing All Systems (Fire Pump run)	52	WK
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				
IDC Type:		Requirement		

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
0002		Monthly Inspection, Testing All Systems (Backflows)	12	MO
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				
IDC Type:		Requirement		

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
0003		Quarterly Inspection, Testing All Systems	4	QTR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	

	Description:		
Purchase Requisitions			
IDC Type:	Requirement		

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
0004		Annual Inspection, Testing All Systems (BPD test flow)	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
	Description:			
Purchase Requisitions				
IDC Type:	Requirement			

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
1001	0001	OY1 Weekly Inspection, Testing All Systems (Fire Pump run)	52	WK
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
	Description:			
Purchase Requisitions				
Option:	1			
Option Time Date:	8/1/27			
Option Time Duration:	365			
Option Time Units:	Days			
IDC Type:	Requirement			

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
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Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
1002	0002	OY1 Monthly Inspection, Testing All Systems (Backflows)	12	MO
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 1
Option Time Date: 8/1/27
Option Time Duration: 365
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
1003	0003	OY1 Quarterly Inspection, Testing All Systems	4	QTR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 1
Option Time Date: 8/1/27
Option Time Duration: 365
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
1004	0004	OY1 Annual Inspection, Testing All Systems (BPD test flow)	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 1
 Option Time Date: 8/1/27
 Option Time Duration: 365
 Option Time Units: Days
 IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
2001	0001	OY2 Weekly Inspection, Testing All Systems (Fire Pump run)	52	WK
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 2
 Option Time Date: 8/1/28
 Option Time Duration: 364
 Option Time Units: Days
 IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
2002	0002	OY2 Monthly Inspection, Testing All Systems (Backflows)	12	MO

Contract Type:Firm Fixed Price		
	Unit Price	
	Estimated Price	
Description:		
Purchase Requisitions		

Option: 2
 Option Time Date: 8/1/28
 Option Time Duration: 364
 Option Time Units: Days
 IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
2003	0003	OY2 Quarterly Inspection, Testing All Systems	4	QTR
Contract Type:Firm Fixed Price				
		Unit Price		
		Estimated Price		
Description:				
Purchase Requisitions				

Option: 2
 Option Time Date: 8/1/28
 Option Time Duration: 364
 Option Time Units: Days
 IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
2004	0004	OY2 Annual Inspection, Testing All Systems (BPD test flow)	1	YR
Contract Type:Firm Fixed Price				
		Unit Price		
		Estimated Price		

	Description:		
Purchase Requisitions			

Option: 2
Option Time Date: 8/1/28
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
2005	0004	OY2 3 Year Trip Test Inspection	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
	Description:			
Purchase Requisitions				

Option: 3
Option Time Date: 8/1/28
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
3001	0001	OY3 Weekly Inspection, Testing All Systems (Fire Pump run)	52	WK
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
	Description:			
Purchase Requisitions				

Option: 3

Option Time Date: 8/1/29
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
3002	0002	OY3 Monthly Inspection, Testing All Systems (Backflows)	12	MO
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 3
Option Time Date: 8/1/29
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
3003	0003	OY3 Quarterly Inspection, Testing All Systems	4	QTR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 3
Option Time Date: 8/1/29
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
3004	0004	OY3Annual Inspection, Testing All Systems (BPD test flow)	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 4
Option Time Date: 8/1/29
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
4001	0001	OY4 Weekly Inspection, Testing All Systems (Fire Pump run)	52	WK
Contract Type:Firm Fixed Price				
			Unit Price	
			Extended Price	
Description:				
Purchase Requisitions				

Option: 4
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Not Applicable

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
4002	0002	OY4 Monthly Inspection, Testing All Systems (Backflows)	12	MO
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 4
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
4003	0003	OY4Quarterly Inspection, Testing All Systems	4	QTR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 4
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
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4004	0004	OY4 Annual Inspection, Testing All Systems (BPD test flow)	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 5
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Estimated Quantity	Unit
4005	0004	OY4 5 Year Internal Inpsection	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Estimated Price	
Description:				
Purchase Requisitions				

Option: 6
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Requirement

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
4006		OY 4 5 Year Flow and Hydrostatic Test of all stand pipes	1	YR
Contract Type:Firm Fixed Price				
			Unit Price	
			Extended Price	

	Description:	
Purchase Requisitions		

Option:
Option Time Date: 8/1/30
Option Time Duration: 364
Option Time Units: Days
IDC Type: Not Applicable

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address

Section III: Contract Clauses

Clauses incorporated by reference

Article Number	Reference Text
52.203-19	52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-13	52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-14	52.204-14 SERVICE CONTRACT REPORTING REQUIREMENTS (OCT 2016)
52.204-19	52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)
52.209-6	52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)
52.212-4	52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)
52.219-6	52.219-6 NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (NOV 2020)
52.219-8	52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)
52.219-28	52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025)
52.222-3	52.222-3 CONVICT LABOR (JUNE 2003)
52.222-35	52.222-35 EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)
52.222-36	52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)
52.222-37	52.222-37 EMPLOYMENT REPORTS ON VETERANS (JUN 2020)
52.222-40	52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)

52.222-41	52.222-41 SERVICE CONTRACT LABOR STANDARDS (AUG 2018)
52.222-43	52.222-43 FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (AUG 2018)
52.222-62	52.222-62 PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (JAN 2022)
52.226-8	52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
52.228-5	52.228-5 INSURANCE-WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
52.232-33	52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.232-40	52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.233-3	52.233-3 PROTEST AFTER AWARD (AUG 1996)
52.233-4	52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)
52.237-2	52.237-2 PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION (APR 1984)
52.204-27	52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

Clauses incorporated by full text

INTRODUCTION

The U.S. Coast Guard, COCO, Operational Logistics Command (LOG-9), Regional Contracting East (LOG-95), will acquire the services outlined in the solicitation utilizing procedures in FAR Part 12.

This solicitation is issued as set aside for 100% for small business. The NAICS code is 561210 with a size standard of \$47 Million.

1. Please read the entire solicitation, including all attachments, to ensure completion of all required representations, certifications, and submissions. You must acknowledge all solicitation amendments issued by the Government.

2. Your offer shall include ALL of the documents and information listed in the solicitation; and your offer shall be received by this office at or before **June 5th, 2026, 1600PM EST**, to be eligible for award. Also, see FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ADDENDUM and 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) ADDENDUM for specific instructions and evaluation information.

Offer submission **must** include:

- (1) Technical (Maintenance approach and personnel qualifications)
- (2) Past Performance information (2 PPQs or CPARS)
- (3) Pricing submitted on Fire Sprinkler Schedule (Attachment I)

3. Submit your offer, with all required documentation to Purchasing Agent, **Sandra Smith** and Contracting Officer, **Maeve Schaeffer**, email addresses:

sandra.e.smith4@uscg.mil

maeve.m.schaeffer@uscg.mil

4. This solicitation does not obligate the Government to compensate for any costs incurred by the Offeror in preparation and/or submission of any offer, nor does it obligate the Government to procure for said services/supplies.

5. **QUESTIONS/CONCERNS:** It shall be the obligation of the offeror to exercise due diligence to discover and bring to the attention of the Government any ambiguities, inconsistencies, or concerns regarding the information in this solicitation. **All questions/concerns regarding this solicitation shall be submitted in writing (NO PHONE CALLS) to the Purchasing Agent at sandra.e.smith4@uscg.mil no later than May 20th, 2026, 1600PM EST.** Follow-up/additional questions will not be accepted after this date. Offerors shall reference the solicitation number and provide enough information in their email so the Government can easily respond to their questions/concerns. All questions/concerns will be compiled and addressed on an "Amendment of Solicitation" and will be posted on the SAM.gov website for viewing by all potential offerors by May 27th, 2026.

6. A site visit will be held on the below date and time. A Real ID is REQUIRED for access.

Friday, May 15th at 0830.

Please submit site visit attendee information (solicitation number, name, number, company, date attending) to maeve.m.schaeffer@uscg.mil by Thursday, May 14th at 1600EST. A limit of two (2) personnel for site visit is authorized.

Please arrive at the SAIL LOFT (see attachment 4, Campus Map) by the start time on Friday.

SCPO Nathan Kirk will meet attendees at the Sail Loft.

The address to the main gate is 15 Mohegan Ave Parkway, New London, CT, 06320.

***Only send questions/concerns to the Contracting Officer above if the Purchasing Agent listed is not available.**

INSPECTION AND ACCEPTANCE

Inspection and acceptance of all work performance, reports, and other deliverables under this Order shall be performed by the Contracting Officer's Representative (COR), whom will be designated in writing by the Contracting Officer after award.

Scope of Inspection

All deliverables will be inspected for content, completeness, accuracy, and conformance to Order requirements by the designated COR. Inspection may include validation of information or software through the use of automated tools, testing or inspections of the deliverables, as specified in the Order. The scope and nature of this inspection will be sufficiently comprehensive to ensure the completeness, quality, and adequacy of all deliverables. Specifically, work products shall be accurate in presentation, technical content, grammar and word usage, and industry standards style. All diagrams shall be easy to understand and be relevant to the supporting narrative.

Basis of Acceptance

The basis for acceptance shall be compliance with the requirements set forth in the awarded Contract and the terms and conditions of the Contract. Reports, documents, and narrative type deliverables will be accepted when all discrepancies, errors or other deficiencies identified in writing by the Government have been corrected. If a draft deliverable is adequate, the Government may accept the draft and provide comments for incorporation into the final version. All of the Government's comments regarding deliverables must either be incorporated in the succeeding version of the deliverable, or the Contractor must demonstrate to the Government's satisfaction why such comments should not be incorporated. If the Government finds that a draft or final deliverable contains spelling errors, grammatical errors, improper format, or otherwise does not conform to the requirements stated within the awarded Contract, the document may be immediately rejected without further review and returned to the Contractor for correction and resubmission. If the Contractor requires additional Government guidance to produce an acceptance draft of a deliverable, the Contractor shall contact the designated COR.

DELIVERIES OR PERFORMANCE

Place(s) of Performance

The place of performance is at the USCG Academy in New London, CT, 06320

Performance Date

The period of performance for is a 1-Year Base period and four one-year option periods from 1 August 2026 - 31 July 2031.

Notice Regarding Late Delivery.

The Contractor shall notify the Government in writing as soon as it becomes apparent to the Contractor, that the scheduled delivery will be late. Such notification in no way limits any Government contractual rights or remedies including but not limited to termination.

ADMINISTRATIVE

Administered By (Contract Management)

Notwithstanding the Contractor's responsibility for total management during the performance of the contract, the administration of the contract will require maximum coordination between the Government and the Contractor. The individuals listed below will be the Government points of contact during the performance period.

Procuring Contracting Office: The U.S. Department of Homeland Security, U.S. Coast Guard, COCO, Operational Logistics Command-LOGCOM, Base Procurement and Contracting (LOG-95), 300 East Main Street, Suite 900, Norfolk, VA 23510-9112 is authorized to order supplies/services stated herein.

Communications pertaining to contractual matters shall be addressed to one of the Contracting Officers (KO) listed below. Changes in, or deviations from, the statement of work or terms and conditions of the contract shall not be effected without written modification to the contract as executed by a USCG COCO, Operational Logistics Command-LOGCOM, Base Procurement and Contracting (LOG-95), Contracting Officer.

Contracting Officer: Maeve Schaeffer

E-Mail: maeve.m.Schaeffer@uscg.mil

Alternate Contracting Officer(s): Any warranted USCG COCO, Operational Logistics Command-LOGCOM, Base Procurement and Contracting (LOG-95).

Point of Contact: Serves as the point of contact between the Contractor and the Contracting Officer(s); however, this person does not have a warrant that provides the authority to contractually commit the Government or to modify any terms and conditions of a contract.

Point of Contact: Sandra Smith, Purchasing Agent

E-Mail: sandra.e.smith4@uscg.mil

INVOICE INSTRUCTIONS

In conjunction with the subject award, proper invoices will be submitted through the Invoice Processing Platform (IPP) at <https://www.ipp.gov/>. IPP is a secure web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service in partnership with the Federal Reserve Bank of St. Louis (FRSTL). IPP is available at no cost to any commercial vendor or independent contractor doing business with a participating government agency.

Actions to take:

If you are already enrolled in IPP:

If your company is already registered to use IPP, you will not be required to re-register and you do not need to contact IPP.

If you are NOT already enrolled in IPP:

The point of contact you provided in your SAM.gov registration will receive two emails from ipp.noreply@mail.erocthai.gov. Please note that emails from this email address may filter into your spam or junk folder:

1. The first email will have the IPP Logon ID and a link to the IPP application.
2. A second email, which will be sent within 24 hours of the first email, contains a temporary password.

Once your contact receives these emails, please ensure they log into IPP and complete the registration process.

Once registered to use IPP, your company may submit invoices electronically, receive e-mail notifications when requests are paid, view payment history, and access remittance downloads. The e-mail notification of payment is sent when a payment is distributed to your bank account and may include the following payment information: Date of payment, dollar amount, invoice number, paying agency, payee name, and ACH trace number.

Vendor training materials, including a first time login tutorial, are available on the <https://www.ipp.gov/> website. Once you have logged in to the IPP application, you will have access to user guides that provide step-by-step instructions for all IPP capabilities, ranging from creating and submitting an invoice to setting up email notifications. Live webinars are held monthly and provide a great opportunity to learn the basic of the system and to call in and ask the IPP team questions about the IPP application.

IPP Customer Support is available to assist users of the system and can answer your questions related to accessing IPP or completing the registration process.

- Toll-free number: 866-973-3131
- Email address: IPPCustomerSupport@fiscal.treasury.gov
- Hours of operation: Monday through Friday (excluding bank holidays) from 8:00 am - 6:00 pm ET

ATTACHMENTS

Attachments:

Attachment I: USCGA Fire Sprinkler Schedule

Attachment II: Wage Determination_2015_4111

Attachment III: Past Performance Questionnaire

Attachment IV: USCGA Campus Map

Attachment V: USCGA Sprinkler SOW

52.217-8

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The

Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

52.217-9

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 Day; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 Years, 6 Months (*months*) (*years*).

(End of clause)

52.252-6

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Homeland Security Regulation (48 CFR Chapter 30) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

3052.212-70

CONTRACT TERMS AND CONDITIONS APPLICABLE TO DHS ACQUISITION OF COMMERCIAL ITEMS (JULY 2023)

The Contractor agrees to comply with any provision or clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial items or components. The provision or clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein. The following provisions and clauses are incorporated by reference: [The Contracting Officer should either check the provisions and clauses that apply or delete the provisions and clauses that do not apply from the list. The Contracting Officer may add the date of the provision or clause if desired for clarity.]

(a) Provisions.

_____ 3052.216-70 Evaluation of Offers Subject to An Economic Price Adjustment Clause.

_____ 3052.219-72 Evaluation of Prime Contractor Participation in the DHS Mentor Protégé Program.

_____ 3052.247-70 F.o.B. Origin Information.

_____ Alternate I

_____ Alternate II

_____ 3052.247-71 F.o.B. Origin Only.

_____ 3052.247-72 F.o.B. Destination Only.

(b) Clauses.

_____ 3052.203-70 Instructions for Contractor Disclosure of Violations.

X 3052.204-71 Contractor Employee Access.

_____ Alternate I

_____ Alternate II

_____ 3052.204-72 Safeguarding of Controlled Unclassified Information.

_____ Alternate I

_____ 3052.204-73 Notification and Credit Monitoring Requirements for Personally Identifiable Information Incidents."

X 3052.205-70 Advertisement, Publicizing Awards, and Releases.

_____ Alternate I

_____ 3052.209-72 Organizational Conflicts of Interest.

_____ 3052.209-73 Limitation on Future Contracting.

X 3052.215-70 Key Personnel or Facilities.

_____ 3052.216-71 Determination of Award Fee.

_____ 3052.216-72 Performance Evaluation Plan.

_____ 3052.216-73 Distribution of Award Fee.

_____ 3052.217-91 Performance. (USCG)

_____ 3052.217-92 Inspection and Manner of Doing Work. (USCG)

_____ 3052.217.93 Subcontracts. (USCG)

_____ 3052.217.94 Lay Days. (USCG)

_____ 3052.217-95 Liability and Insurance. (USCG)

_____ 3052.217-96 Title. (USCG)

_____ 3052.217.97 Discharge of Liens. (USCG)
_____ 3052.217-98 Delays. (USCG)
_____ 3052.217-99 Department of Labor Safety and Health Regulations for Ship Repair. (USCG)
_____ 3052.217-100 Guarantee. (USCG)
_____ 3052.219-71 DHS Mentor Protégé Program.
_____ 3052.228-70 Insurance.
_____ 3052.228-90 Notification of Miller Act Payment Bond Protection. (USCG)
_____ 3052.228-91 Loss of or Damage to Leased Aircraft. (USCG)
_____ 3052.228.92 Fair Market Value of Aircraft. (USCG)
_____ 3052.228-93 Risk and Indemnities. (USCG)
_____ 3052.236-70 Special Provisions for Work at Operating Airports.
X 3052.242-72 Contracting Officer's Representative.

(End of clause)

52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS.

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive

compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) Governmentwide exclusion and removal orders.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS.

As prescribed in 40.303-2, insert the following clause:

Basic Safeguarding of Covered Contractor Information Systems (Deviation Date)

(a) Definitions. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) *Safeguarding requirements.*

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

- (i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).
- (ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
- (iii) Verify and control/limit connections to and use of external information systems.
- (iv) Control information posted or processed on publicly accessible information systems.
- (v) Identify information system users, processes acting on behalf of users, or devices.
- (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
- (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
- (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
- (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
- (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
- (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
- (xii) Identify, report, and correct information and information system flaws in a timely manner.
- (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
- (xiv) Update malicious code protection mechanisms when new releases are available.
- (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS.

As prescribed in 22.2203, insert the following clause:

Addressing DEI Discrimination by Federal Contractors (Deviation DATE)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
- (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.
- (End of clause)

52.222-55 MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (JAN 2022)

EO 14026 is rescinded, and the Department of Labor is no longer enforcing it. DOL has not published additional updated guidance yet. Current guidance can be found at "<https://www.dol.gov/agencies/whd/government-contracts/eo14026>"Final Rule: Increasing the Minimum Wage for Federal Contractors (Executive Order 14026) | U.S. Department of Labor

52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ADDENDUM

52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES ADDENDUM

(1) Technical Capability and Understanding

Offerors shall address their proposed method for accomplishing all the tasks outlined in the Statement of Work and a well thought-out approach that is likely to yield the required results within the required time frame, in addition to their overall understanding of the requirements. The technical proposal should be precise and not assume the evaluation team is aware of the offeror's abilities to accomplish this requirement. Offerors must specifically address their ability and method/approach to providing all the requirements; failure to submit a Technical Section with the offer may result in rejection without further consideration.

Factor 1: Maintenance Approach

Offerors must provide an approach that addresses the following:

1. Quarterly Sprinkler and Standpipe Systems Inspection and Test.
2. Annual Sprinkler and Standpipe System Inspection and Test.
3. Monthly Backflow Prevention Devices Inspection.
4. Annual Backflow Prevention Inspection and Test with Forward Flow Test.
5. Electric Fire Pump Weekly Inspection and Test.
6. Diesel Fire Pump Weekly Inspection and Test.
7. Fire Pump Annual Flow Test.
8. Annual Fire Hydrant Test and Inspection.
9. Semi-annual maintenance of CGA Dry Sprinkler System compressors
10. Five-year internal pipe inspection of all Sprinkler and Standpipe Systems.
11. Standalone Standpipe Inspection and Test for buildings with standpipe systems only.

Note: While used as part of contract award evaluation process, ALL reports must be approved by the CGA Fire Marshal prior to execution of first scheduled inspection or test.

Factor 2: Personnel Qualifications

Contractor shall provide evidence of all certifications, permits, applicable licenses (F1 Unlimited Contractor) and insurance required by the State of Connecticut to inspect, test, maintain and repair all systems, devices, and hydrants covered by this SOW.

(2) Past Performance

Offerors shall furnish the information listed below for at least 2 different contracts, that are ongoing or completed within the last three (3) years, are relevant to this requirement (i.e., the same or similar requirement) and are held with government (federal, state, local), private or commercial entities. Like or similar requirements under this RFQ is defined as those providing the same or similar services or supplies to a government, private, commercial entity.

Name of Company/Organization:

Contract Number:

Contract Type/Amount:

Period of Performance:

Description of Supply or Service:

First Point of Contact (Name):

Phone Number:

E-Mail Address:

Second Point of Contact (Name):

Phone Number:

E-Mail Address:

Past Performance Questionnaires (PPQ)

Offerors are responsible for ensuring that Past Performance Questionnaires (PPQ) (Attachment 3) are completed and submitted on at least two (2) different government (federal, state, or local), private or commercial contracts that have been awarded to the offeror. The Offeror shall send Past Performance Questionnaires to points-of-contact (i.e., past performance evaluators) at government, private or commercial entities that have firsthand knowledge of contracts completed within the past 3 years or ongoing and are relevant to this requirement (i.e., the same or similar requirement).

Only one Past Performance Questionnaire shall be completed per contract and the same person cannot complete more than one Past Performance Questionnaire. (A Past Performance Questionnaire shall not be completed by a point of contact/employee of a prime contractor that your company worked for as a sub-contractor or your company's parent or sister company.)

Each past performance evaluator shall submit a completed Past Performance Questionnaire (PPQ) directly to the Contract Specialist, Sandra Smith, via e-mail at Sandra.e.smith4@uscg.mil on or before the Quote Due Date. An Offeror shall not complete the Past Performance Questionnaire on behalf of a past performance evaluator nor shall they forward a completed PPQ to the Contract Specialist. The PPQ shall be forwarded to the Contract Specialist and Contract Officer from the past performance evaluator's e-mail address or fax number. If the PPQ is faxed an email shall be sent from the evaluator to the Contract Specialist for receipt confirmation.

** Contractor Performance Assessment Reporting System (CPARS) records may be used in lieu of PPQ.**

(3) Price

Offerors are required to provide unit prices for all items. A zero-dollar figure (\$0.00) unit price means the Offeror will provide the service at no charge to the Government. Unit prices left blank or annotated with something other than a dollar figure will be considered unacceptable and the Government has discretion whether to reject the offer without any further consideration.

Submit pricing on Fire Sprinkler Schedule (Attachment 1).

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation is the Lowest Priced Technically Acceptable Offer (LPTA). Technically acceptable is defined as the offeror's ability to meet all the requirements identified in the Statement of Work and the offeror's demonstrated ability to perform the contract successfully through Past Performance.

Only the lowest priced offer will be evaluated for technical acceptability. If the lowest priced offer is found not to be technically acceptable, then the next lowest priced offer will be evaluated. This process will continue until a technically acceptable offer is identified; not all offers will be evaluated. The following factors shall be used to evaluate offers: (1) Technical, (2) Past Performance and (3) Price. Under LPTA, non-priced/cost factors are of equal importance and are evaluated on a pass/fail basis. There is no ranking of proposals based on non-price/cost factors and no higher value is earned by proposals exceeding the solicitation requirements.

(1) Technical Capability and Understanding

The Government will evaluate the offeror's ability and method/approach to providing all the requirements in the Statement of Work (SOW) as identified in their technical section/proposal (inclusive of Factor 1: Maintenance Approach and Factor 2: Personnel Qualifications). Technical will be rated as to the extent the offeror can clearly and fully demonstrate that it has a thorough understanding of the requirements and can successfully provide the requirements. Offers that do not demonstrate the ability to perform the listed tasks in the SOW (by a lack of relevant experience and/or written skills, or technical expertise) will be evaluated as "Fail".

(2) Past Performance

All past performance information obtained will be used to determine the offeror's ability to perform the contract successfully. The Government may use past performance information obtained from any source to evaluate past performance.

(3) Price

Only the lowest priced technically acceptable offer will be evaluated on Price. The Government will evaluate price for reasonableness and award a contract to the offeror with the lowest priced technically acceptable offer.

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS.

As prescribed in 22.2203, insert the following clause:

Addressing DEI Discrimination by Federal Contractors (Deviation DATE)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
 - (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
 - (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
 - (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
 - (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
 - (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
 - (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.
- (End of clause)

Section IV: List of Documents, Exhibits, and other Attachments

None

Section V: Solicitation Provisions

Clauses incorporated by reference

Article Number	Reference Text
52.204-7	52.204-7 SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.212-1	52.212-1 Instructions to Offerors—Commercial Products and Commercial Services.

Clauses incorporated by full text

52.212-2
EVALUATION - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Technical, Price, Past Performance

Technical and past performance, when combined, are N/A

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.233-2

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from OPOP@uscg.mil and copy the Contracting Officer.

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.237-1

SITE VISIT (APR 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

52.252-5

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of Homeland Security(48 CFR Chapter30) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause

52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions

and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.204-90 OFFEROR IDENTIFICATION.

As prescribed in 4.208(c)(1), insert the following provision:

Offeror Identification (Deviation Date)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) Definitions. As used in this provision—

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) Unique entity identifier (UEI).

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) Taxpayer identification. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____

TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is... Then... Located in the United States or its outlying areas Submit a request to the DLA CAGE Branch via <https://cage.dla.mil> Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation Contact the appropriate National Codification Bureau (<https://www.nato.int/structur/ac/135/about/contacts>) Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation Contact the NATO Support and Procurement Agency (NSPA) (<https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>) (2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for—

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type CAGE Code Legal Business Name Immediate owner Highest-level owner Predecessor* * Predecessor CAGE
code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)